

HOUSE No. 4380

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Finn and John C. Velis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the charter of the city known as the town of Agawam to strike the reference to the board of appeals.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>7/30/2025</i>
<i>Nicholas A. Boldyga</i>	<i>3rd Hampden</i>	<i>7/30/2025</i>

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By Representative Finn of West Springfield and Senator Velis, a joint petition (accompanied by bill, House, No. 4380) of Michael J. Finn and Nicholas A. Boldyga (with the approval of the town council) that the city known as the town of Agawam be authorized to strike the reference to the board of appeals in the city charter. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the charter of the city known as the town of Agawam to strike the reference to the board of appeals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The charter of the city known as the Town of Agawam, certificate of the
2 same having been deposited in the office of the state secretary and kept under the custody of the
3 archivist of the commonwealth, as provided by Section 12 of Chapter 43B of the General Laws,
4 is hereby amended in Section 2-8 of Article 2 by striking out Subsection c, entitled ‘Board of
5 Appeals’, in its entirety.

6 SECTION 2. Notwithstanding any general or special law to the contrary, this act shall be
7 submitted for acceptance to the qualified voters of the city known as the Town of Agawam at the
8 2025 regular election in the form of the following question:

9 “Shall an Act passed by the General Court in the year 2025 entitled ‘An Act amending
10 the charter of the city known as the Town of Agawam to strike the reference to the Board of
11 Appeals’ be accepted?”

12 Below the question shall appear a fair and concise summary of the proposed charter
13 amendment prepared by the city solicitor.

14 If a majority of the votes cast in answer to this question are in the affirmative, Section 1
15 shall take effect forthwith and the City Council and Mayor of the city known as the Town of
16 Agawam shall provide by ordinance for a zoning board of appeals in a manner consistent with
17 the provisions of Section 12 of Chapter 40A of the General Laws.

18 SECTION 3. The city solicitor shall prepare the summary required under section 2 not
19 later than 60 days before the election in accordance with section 58A of chapter 54 of the
20 General Laws.